

25STCV07748 25STCV07748

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 25STCV07748 Hearing Date: September 14, 2026 Dept: 516

GENERAL JURISDICTION

DEFAULT JUDGMENT

Case Name: Huang

v. Gen Liu, et al.

Case Number: 25STCV07748

Date: September 14, 2026

Defendant(s) Against Whom Default Judgment is Sought: Defendant Mojo Group

DENIED.

On June 13, 2025, Plaintiff

filed a First Amended Complaint ("FAC") asserting causes of action for: (1) wrongful termination in violation of public policy; (2) retaliation in violation of Labor Code sections 1102.5 and 98.6; (3) misclassification of employee as independent contractor; (4) failure to pay minimum wages in violation of Labor Code sections 558, 558.1, 1194, 1194.2, 1197, and 1197.1; (5) failure to pay overtime wages in violation Labor Code sections 510, 558, 558.1, 1194, 1194.2, and 1197.1; (6) failure to provide meal breaks in violation of Labor Code section 226.7; (7) failure to provide rest breaks in violation of Labor Code section 226.7; (8) failure to provide accurate wage statements in violation of Labor Code section 226; (9) waiting time penalties pursuant to Labor Code section 201, and 203; (10) failure to reimburse business expenses; (11) failure to permit inspection of personnel file and payroll records in violation of Labor Code sections 226, subdivisions (c), (f), 432, and 1198.5; (12) unlawful,

unfair, fraudulent business practices in violation of Government Code section 17200; (13) intentional interference with contractual relations; (14) intentional interference with prospective economic relations; and (15) negligent interference with prospective economic relations.

On

April 13, 2026, and June 12, 2026, the Court previously denied Plaintiff's request for default judgment because the amount in damages exceeded the amount requested in the FAC. (April 13, 2026, Minute Order; June 12, 2026, Minute Order.) The April 13, 2026, Minute Order states:

Plaintiff's FAC

is devoid of a damages amount. (See generally, FAC [no specific amounts identified].) The Complaint only states penalty amounts and violation amounts. Plaintiff's request for default judgment seeks damages in the amount of \$150,000. (CIV-100.) Further, the amount requested for a default judgment "cannot exceed that demanded in the complaint, in the statement [of damages] required by Section 425.11, or in the statement provided for by Section 425.115." (Dhawan v. Biring (2015) 241 Cal.App.4th 963, 968 (Dhawan).) Section 425.11 requires a statement of damages to be separately served on a defendant in "an action to recover damages for personal injury or wrongful death." (Code Civ. Proc., § 425.11, subd. (b).) Plaintiff's causes of action are not to vindicate her personal injury, but instead constitute a property right. (Rodriguez v. Cho (2015) 236 Cal.App.4th 742, 755.) Strictly construed, serving a statement of damages cannot satisfy section 580 in an action not involving personal injury or wrongful death." (Dhawan, supra, 241 Cal.App.4th at p. 970.)

Thus, the amount sought in the default judgment is improper. (Code Civ. Proc., § 580.)

(April 13, 2026, Minute Order.)

Plaintiff's

August 25, 2026, default packet does not cure the deficiencies in the Court's prior ruling and based thereon is denied.